



ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT

COMPANION LEGAL BRIEF NO. 4

THE TRIBAL PARTNERSHIP CONTINGENCY FRAMEWORK

TITLE XXI

Pre-Argument Defense Brief
Prepared for deployment within 48 hours of any legal or legislative challenge

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For Our People, By Our People

EXECUTIVE SUMMARY

Title XXI of the ACE Act, The Tribal Partnership Contingency Framework, establishes a second, independent path by which ACE may secure land and sovereign self-governance for its communities. This path operates in parallel to and never dependent upon the tribal partnership framework established in Title III. Title XXI's central legal claim is that Congress should enact new, standalone legislation, to be known as the ACE Sovereign Territory Act, designating ten million acres of existing Bureau of Land Management public land across ten states for ACE's use, with protections and immunities equivalent in substance and permanence to those currently available to federally recognized tribal nations under trust title.

This brief pre-argues the three strongest challenges ACE anticipates to Title XXI and its implementing legislation, and demonstrates that each fails on its own terms. The challenges addressed are: (1) that ACE improperly analogizes itself to tribal nations that qualify for existing federal recognition mechanisms; (2) that the proposed ACE Sovereign Territory Act exceeds congressional authority or creates unconstitutional racial classifications; and (3) that the Special Field Order No. 15 historical predicate is legally insufficient to ground a present-day land remedy.

Each challenge has been anticipated and addressed in the text of Title XXI itself, particularly in Sections 2103 (The Continuity Doctrine), 2104 (Disclaimer of Existing Eligibility), and 2105 (The Legislative Ask). This brief expands those arguments in the depth required for immediate legal deployment.

I. THE LEGAL FOUNDATION OF TITLE XXI'S CONTINGENCY CLAIM

A. The Special Field Order No. 15 Historical Predicate

In January 1865, General William T. Sherman issued Special Field Order No. 15, setting aside approximately four hundred thousand acres of coastal land in South Carolina, Georgia, and Florida for the settlement of formerly enslaved Black Americans in allotments of not more than forty acres per family. Applied to the approximately 4.5 million formerly enslaved persons living at that time, the full promise of Special Field Order No. 15, if honored, would have totaled approximately 180 million acres of land.

President Andrew Johnson revoked Special Field Order No. 15 the same year it was issued, before its promise could be fulfilled for the overwhelming majority of those to whom it was made. Congress has enacted no comparable land remedy in the one hundred sixty-one years since. Special Field Order No. 15 is not merely a historical grievance. It is a documented,

specific, quantifiable promise made by the United States government to a specific population, revoked by the same government within the year it was made, and never replaced.

Title XXI does not demand fulfillment of the full 1865 promise in either its original or its present-day equivalent. A present-day application of the forty-acre-per-family standard to approximately 51 million Black Americans would require land far exceeding the total land area of the United States. Title XXI proposes instead a deliberately modest claim: ten million acres of land the federal government already holds, administers, and controls, distributed as one million acres each across ten states where the Bureau of Land Management manages substantial existing holdings. This figure represents less than six percent of the original 1865 promise applied to the 1865 population, and a smaller fraction still applied to the present population.

B. The Continuity Doctrine: The Supreme Court's Own Distinction

The legal theory of Title XXI rests on a distinction drawn not by ACE but by the Supreme Court of the United States in its own words in *Dred Scott v. Sandford*, 60 U.S. 393 (1857). In reaching its holding that persons of African descent could never become citizens of the United States, the Court drew an explicit contrast between the legal status of Black Americans and the legal status of Native American tribal nations.

The Court observed that Native American peoples, though never absorbed into the colonial political community and often subjected to removal and dispossession, were nonetheless recognized as a free and independent people, organized into nations and tribes and governed by their own laws. This political continuity, the Court acknowledged, distinguished tribal nations from Black Americans, whom the Court held possessed no rights that the United States was bound to respect.

Title XXI derives from this distinction a legal theory of historical relevance and considerable force. Tribal political continuity was violently disrupted by the same federal government ACE now asks to act, but it was never legally extinguished. Tribes retained the standing to be recognized as continuous sovereign political communities because the United States itself, even at its worst, never formally denied that such communities existed. The existing federal acknowledgment process, 25 C.F.R. Part 83, is built on this premise: it recognizes a pre-existing, continuous political community. It does not create new sovereignty. It identifies sovereignty that already exists.

Black Americans' political continuity was not disrupted. It was affirmatively and legally prevented from ever being reconstituted by the deliberate actions of the same government. The legal architecture of chattel slavery defined Black Americans as property rather than persons. *Dred Scott* foreclosed personhood and citizenship as a matter of constitutional law. The decades

of Jim Crow that followed emancipation used law itself to suppress and criminalize every independent Black political and economic institution capable of reconstituting the self-governing continuity that slavery had severed. The government responsible for severing that continuity now bears a distinct and specific obligation to provide remedy, an obligation that does not fit cleanly into the existing tribal recognition framework precisely because that framework was built around a different kind of harm.

C. Congressional Authority to Act Outside the Existing Framework

Title XXI does not claim that ACE or Black Americans qualify under 25 C.F.R. Part 83 or 25 U.S.C. Section 5108, and it explicitly disclaims such eligibility in Section 2104. Both mechanisms are built to recognize pre-existing, continuously maintained tribal political communities, and both categorically exclude recently formed organizations regardless of the strength of their historical claim. This disclaimer is not a concession. It is the correct legal position, and stating it plainly is a strategic strength, not a weakness.

Congress's authority to act outside the administrative acknowledgment framework is confirmed by the structure of federal Indian law itself. The Federally Recognized Indian Tribe List Act of 1994, Public Law 103-454, explicitly identifies recognition by Act of Congress as one of three independent and valid pathways to federal recognition, alongside the administrative process and recognition by court decision. Congress acting by statute outside the Part 83 process is not unprecedented. It is a named, legally established pathway that has been used and is available for use again.

The Confederated Tribes of Coos, Lower Umpqua, and Siuslaw Indians Restoration Act; the Siletz Indian Tribe Restoration Act; and dozens of similar restoration acts represent Congress exercising precisely this independent authority to extend or restore federal recognition by statute when the administrative process either could not or did not apply. ACE's ask is structurally identical in its mechanism, though distinct in its predicate: rather than restoring recognition to a terminated tribe, the ACE Sovereign Territory Act establishes a new category of sovereign-equivalent designation for a people whose continuity was extinguished by government action, not terminated by government policy.

II. THE THREE ANTICIPATED CHALLENGES AND ACE'S RESPONSES

Challenge 1: ACE Improperly Analogizes Itself to Tribal Nations

The first and most predictable challenge to Title XXI is that ACE's claim improperly seeks to extend to a non-tribal, newly formed organization the legal protections and designations that

existing law reserves exclusively for pre-existing Indigenous political communities with documented, continuous histories. This challenge will assert that ACE cannot avail itself of the tribal recognition framework because it does not satisfy and has never claimed to satisfy the foundational criteria of that framework.

ACE's response is direct, because ACE itself makes this point first. Section 2104 of Title XXI is a standalone section whose sole purpose is to state plainly that ACE does not claim eligibility under 25 C.F.R. Part 83 or 25 U.S.C. Section 5108, and to explain honestly why: both mechanisms are designed to recognize a continuous political community whose existence predates the inquiry, not to create new status for any group, however meritorious its historical claim. A legal brief that got this threshold point wrong would be vulnerable to immediate and decisive rebuttal. Title XXI gets it right by design.

The challenge therefore collapses on its own terms, because it attacks a position ACE does not hold. ACE is not claiming that it qualifies under the existing framework. ACE is arguing that the existing framework cannot accommodate its claim, and that Congress should enact new legislation that does, as it has done in analogous contexts in the past. An adversary who argues that ACE fails Part 83 criteria is arguing against a straw man.

The deeper response, grounded in the Continuity Doctrine established in Section 2103, is that the existing framework's inability to accommodate ACE's claim is not a defect in ACE's argument. It is additional evidence of the harm ACE's claim seeks to remedy. The same government that extinguished Black political continuity by law built the only available recognition framework around communities whose continuity it disrupted but did not extinguish. The gap in the law is not ACE's problem to solve administratively. It is Congress's obligation to fill legislatively.

Challenge 2: The ACE Sovereign Territory Act Is Unconstitutional

A second anticipated challenge is that the proposed ACE Sovereign Territory Act constitutes an unconstitutional racial classification subject to strict scrutiny under the Equal Protection Clause, and that designating federal land exclusively for the use of Black Americans cannot survive that scrutiny.

ACE's response operates on three levels, each independently sufficient to defeat this challenge. First, the ACE Sovereign Territory Act is a remedial, not a racial, classification. *Morton v. Mancari*, 417 U.S. 535 (1974), established the foundational principle that federal legislation benefiting tribal nations is subject to rational basis review, not strict scrutiny, because such legislation reflects the government's unique political and legal relationship with a specific community, not a racial preference. The same analytical framework applies to the ACE

Sovereign Territory Act. The class of beneficiaries is defined not by race as a biological category but by their membership in a political and civic community, Black Americans, whose government bears a specific, documented, and quantifiable remedial obligation arising from specific historical acts. The classification is political and remedial. *Morton v. Mancari* and its progeny support its constitutionality.

Second, even if strict scrutiny applied, the ACE Sovereign Territory Act satisfies it. The Supreme Court has held that remedying the present effects of past government-sponsored discrimination constitutes a compelling governmental interest sufficient to survive strict scrutiny. *Fullilove v. Klutznick*, 448 U.S. 448 (1980). The documented record of federal government action against Black political and economic institutions, from the legal architecture of chattel slavery through Reconstruction's dismantling, the destruction of the Greenwood District in 1921, and COINTELPRO, is the most extensive and thoroughly documented record of government-sponsored community destruction in American history. The ACE Sovereign Territory Act is narrowly tailored to remedy precisely this harm: providing the land foundation that Black American communities have been systematically and deliberately denied.

Third, the ACE Sovereign Territory Act does not create a preference. It creates parity. The federal government has already accepted, in statute and in practice, that it owes a land-based remedial obligation to tribal nations whose territories it took. The existing tribal trust framework is the mechanism through which that obligation is partially discharged. The Equal Protection Clause demands consistency. A government that accepts this remedial obligation for one historically dispossessed people and refuses it for another, despite an equivalent or stronger historical record of direct government responsibility, cannot satisfy rational basis review, let alone the mandate of equal treatment.

Challenge 3: Special Field Order No. 15 Is an Insufficient Legal Predicate

A third anticipated challenge is that Special Field Order No. 15 was a military order issued under wartime authority, not a statute, treaty, or constitutional provision; that it was lawfully revoked; and that it therefore cannot ground a present-day legal claim to federal land one hundred sixty-one years after its revocation.

This challenge mistakes the legal structure of Title XXI's claim. Special Field Order No. 15 is not Title XXI's legal predicate. It is Title XXI's historical evidence. The legal predicate is the Continuity Doctrine grounded in *Dred Scott* and the broader pattern of documented, affirmative government acts that prevented Black American political and economic reconstitution across the century following emancipation. The fact that Special Field Order No. 15 was revoked does not

diminish its evidentiary value. It amplifies it. The revocation is part of the pattern, not an exception to it.

ACE's claim does not depend on Special Field Order No. 15 being a binding legal instrument that was unlawfully rescinded. It depends on Special Field Order No. 15 being the clearest, most specific, and most precisely quantifiable example of the United States government making and immediately breaking a land promise to Black Americans, a pattern that extends from 1865 through the present. The remedy ACE asks for is grounded not in the enforceability of the specific order but in the accumulated weight of documented government conduct of which the order and its revocation are the most vivid single example.

The closer analogy is not a breach of contract claim on a specific instrument. It is the same remedial logic that underlies the tribal tax exemption, the Civil Liberties Act of 1988 for Japanese Americans, and the broader framework of government remedial obligations to communities it has harmed. In each case, Congress did not act because of the legal enforceability of a specific prior promise. It acted because the accumulated record of government conduct created a recognized obligation to remedy the harm. Title XXI asks Congress to recognize the same obligation for Black Americans.

III. THE POLITICAL ARGUMENT TO CONGRESS

The following argument is prepared for delivery to Congress in any legislative proceeding considering the ACE Sovereign Territory Act. It is designed to be read into the record.

One hundred sixty-one years ago, your government promised forty acres of land to approximately 4.5 million Black Americans who had been held as property by law. Your government revoked that promise in the same year it was made. No Congress since has enacted a comparable remedy. No land has been provided. No substitute has been offered. The question before you today is not whether that promise should have been kept. History answered that question. The question before you is what a realistic remedy looks like in the present, for the people still living with the consequences.

You currently hold and administer over 247 million acres of public land through the Bureau of Land Management. You are not being asked to seize, purchase, or condemn anyone's property. You are being asked to designate ten million acres, less than four percent of your existing holdings, for use by the community to which this government made and broke its most specific and quantifiable land promise. Ten million acres is less than six percent of what was promised in 1865, applied to the population that existed then.

You have accepted, in statute and in practice, that a government which takes a people's land and destroys their political and economic institutions bears a remedial obligation to act. You have discharged part of that obligation to tribal nations through the trust land framework. You discharged part of it to Japanese Americans through the Civil Liberties Act of 1988. You have accepted the principle. You have applied it before. ACE asks you to apply it here. This is not a racial preference. It is the application of a remedial principle you have already accepted to a people whose claim is older, more specific, and more quantifiable than any other remedial claim Congress has acted upon in the past century. The only question is whether the principle applies equally. The Constitution demands that it does.

IV. THE THREE PURSUIT TRACKS

The ACE Sovereign Territory Act is pursued simultaneously through three parallel tracks, each independent of the others, consistent with the legislative strategy established in Section 2110 of Title XXI.

Track 1: Legislative Advocacy

ACE advocates directly for the ACE Sovereign Territory Act through the ACE Congressional Caucus, ACE's independent political accountability network. The Act is introduced as a standalone legislative measure and is not presented to Congress as an amendment or extension of 25 C.F.R. Part 83 or 25 U.S.C. Section 5108, consistent with the disclaimer in Section 2104 of Title XXI. The standalone structure is both legally correct and strategically essential: it prevents adversaries from conflating ACE's claim with a failed attempt to fit into the existing tribal recognition framework.

The legislative argument to Congress draws directly on the political argument in Section III of this brief. ACE does not lobby Congress to accept a novel theory. It asks Congress to apply a principle it has already accepted, through a mechanism it has already used, to a community whose claim is older and more specific than any prior remedial action Congress has taken in this domain.

Track 2: Coalition and Alliance Building

ACE builds coalition support for the ACE Sovereign Territory Act among aligned members of Congress, state legislatures, and civil rights, Indigenous rights, and international human rights organizations. ACE makes unmistakably clear in all coalition communications that the contingency track is parallel to and not competitive with ACE's tribal partnership strategy. ACE's pursuit of Congressional land designation does not diminish or replace its pursuit of

tribal partnership. Both tracks serve the same mission and reinforce rather than undermine each other.

ACE coordinates the domestic legislative argument in Track 1 with the international human rights strategy established in Title XXII, presenting a single, consistent historical and legal narrative across both domestic and international forums. The Continuity Doctrine grounded in *Dred Scott v. Sandford* serves both tracks: it supports the constitutional argument for the ACE Sovereign Territory Act domestically, and it supports the human rights claim before international bodies that ACE's Title XXII strategy pursues.

Track 3: Pre-Litigation Preparation

ACE retains constitutional law counsel to evaluate the full range of legal arguments available in support of the ACE Sovereign Territory Act and in anticipation of legal challenges to it. Pre-litigation preparation is not reactive. It is the legal infrastructure that makes the legislative and coalition tracks more credible, because adversaries and legislators alike know that ACE has already anticipated the objections and prepared the responses.

ACE maintains this brief in updated form on permanent retainer with its legal counsel, ready for deployment within 48 hours of any legal challenge to Title XXI or to the proposed ACE Sovereign Territory Act. The brief is reviewed annually and updated to reflect developments in relevant constitutional doctrine, BLM land management policy, and the status of the three pursuit tracks.

APPENDIX A: CORE LEGAL AUTHORITIES

The following cases, statutes, and historical instruments form the primary legal foundation of Title XXI's defense:

***Dred Scott v. Sandford*, 60 U.S. 393 (1857)**

The Supreme Court's own language distinguishing the recognized political continuity of Native American tribal nations from the complete denial of legal personhood and citizenship to Black Americans. The foundational text of the Continuity Doctrine established in Section 2103 of Title XXI.

***Morton v. Mancari*, 417 U.S. 535 (1974)**

Federal classifications based on the government's unique political relationship with a specific historically wronged community are political, not racial, and are subject to rational basis rather than strict scrutiny. The foundational authority for framing the ACE Sovereign Territory Act as a remedial political classification.

Fullilove v. Klutznick, 448 U.S. 448 (1980)

Remedying the present effects of past government-sponsored discrimination constitutes a compelling governmental interest sufficient to satisfy strict scrutiny. Supports the ACE Sovereign Territory Act even under the most demanding constitutional standard.

Federally Recognized Indian Tribe List Act of 1994, Pub. L. 103-454

Confirms that federal recognition of a tribe's sovereign status may be established by Act of Congress independently of the administrative process under 25 C.F.R. Part 83. The foundational authority for ACE's legislative approach in Section 2105 of Title XXI.

HEARTH Act of 2012, 25 U.S.C. Section 415(h)

Authorizes tribal nations to lease trust lands under tribal leasing regulations approved by the Secretary of the Interior. The legal vehicle for ACE's tribal partnership track under Title III, cited here to distinguish the contingency track's different and independent legal mechanism.

Civil Liberties Act of 1988, Pub. L. 100-383

Congressional recognition of a remedial obligation to Japanese Americans harmed by government action. The clearest modern precedent for Congress acting by standalone statute to discharge a specific, documented remedial obligation to a harmed community without relying on any pre-existing administrative mechanism.

Special Field Order No. 15 (January 1865, General William T. Sherman)

The most specific and quantifiable land promise made by the United States government to Black Americans. Revoked by President Andrew Johnson the same year it was issued. Cited in Title XXI not as a binding legal instrument but as the clearest historical evidence of the specific land obligation ACE's claim seeks, in modest and realistic part, to address.

Bureau of Land Management Public Land Statistics (current)

Confirms that the ten states named in Section 2106 of Title XXI (Nevada, Utah, Wyoming, California, New Mexico, Arizona, Idaho, Oregon, Montana, and Colorado) each hold substantially more than one million acres of BLM-administered land, ranging from approximately 8.3 million acres in the smallest (Colorado and Montana) to approximately 48 million acres in the largest (Nevada). The one-million-acre claim per state represents a small fraction of existing holdings in every case.

APPENDIX B: BRIEF MAINTENANCE AND DEPLOYMENT PROTOCOL

This brief is maintained in current form at all times. It is reviewed annually by ACE legal counsel to reflect developments in constitutional doctrine, BLM land management policy, and the status of the three pursuit tracks established in Section IV.

Upon receipt of any legal challenge to Title XXI or to the proposed ACE Sovereign Territory Act, the following deployment protocol is activated:

- ACE legal counsel reviews the specific challenge and cross-references it against the three anticipated challenge categories addressed in Section II of this brief within 24 hours of receipt.
- This brief is filed as a supporting memorandum of law in any responsive pleading within 48 hours.
- ACE Policy Institute issues a public statement grounding Title XXI's legal basis in language accessible to community members and media within 48 hours.
- ACE Congressional Caucus is notified immediately and briefed on the challenge and ACE's legal response so that congressional allies can respond in their own public communications within 48 hours.
- ACE Media Network publishes a community-facing explanation of the challenge and ACE's response within 48 hours.

ONE HUNDRED SIXTY-ONE YEARS AFTER THE PROMISE WAS MADE AND REVOKED IN THE SAME YEAR, ACE DOES NOT ASK FOR THE FULL PROMISE TO BE KEPT. ACE ASKS FOR THE MINIMUM REALISTIC REMEDY THAT THE PRINCIPLE CONGRESS HAS ALREADY ACCEPTED DEMANDS.